

Law & Motion

2. 9:00 AM CASE NUMBER: C22-01428
CASE NAME: ROBERT ANTHONY VS. DRESSER-RAND COMPANY
*HEARING ON MOTION IN RE: OSC RE: COMPLIANCE WITH TERMS OF THE SETTLEMENT
FILED BY:
TENTATIVE RULING:

Based on the Supplemental the declaration of the Settlement Administrator, the Court concludes that the disbursement of PAGA and Class Action Settlement Funds is complete and directs the administrator to release the remaining attorneys' fees.

3. 9:00 AM CASE NUMBER: C23-03307
CASE NAME: PAWNEE LEASING CORPORATION VS. SARFARAZ DHILLON
*HEARING ON MOTION IN RE: LEAVE OF COURT TO FILE CROSS COMPLAINT
FILED BY: DHILLON, SARFARAZ SINGH
TENTATIVE RULING:

Defendant Sarfaraz Dhillon seeks leave to file a cross-complaint against Plaintiff Pawnee Leasing Corporation. The Court received no opposition.

Defendant and proposed Cross-Complainant filed an answer in this matter on April 24, 2025. Defendant represents that he "only recently completed review of documents and communications clarifying" facts he believes supports the allegations in the proposed Cross-Complaint. He filed this motion on October 27, 2025. Pursuant to Code of Civil Procedure section 428.50(c), leave of the Court is required in this circumstance. "A motion to file a cross-complaint at any time during the course of the action must be granted unless bad faith of the moving party is demonstrated where forfeiture would otherwise result." (*Silver Orgs. v. Frank* (1990) 217 Cal.App.3d 94, 99.) There is no indication of bad faith and the Court does not see any prejudice. The lack of opposition does bolster both of those findings.

For the reasons stated above, the Motion is **granted**. Defendant must file the Cross-Complaint within five days.

4. 9:00 AM CASE NUMBER: C24-02601
CASE NAME: DORIAN ELDRIDGE VS. FCA US, LLC.
*HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL FOR PLTF
FILED BY: ELDRIDGE, DORIAN
TENTATIVE RULING:

Counsel for Plaintiff Dorian Eldridge moves to withdraw as counsel in this matter. On the basis of counsel's declaration that there has been a complete breakdown in the attorney-client relationship,

the motion is **granted**.

Plaintiff is advised:

You will not have an attorney representing you. You may wish to seek legal assistance. If you do not have a new attorney to represent you in this action or proceeding, and you are legally permitted to do so, you will be representing yourself. It will be your responsibility to comply with all court rules and applicable laws. If you fail to do so, or fail to appear at hearings, action may be taken against you. You may lose your case.

5. 9:00 AM CASE NUMBER: C25-01400
CASE NAME: SHEILA COREY VS. RAYMOND RANGEL
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: RANGEL, RAYMOND

TENTATIVE RULING:

Before the Court is Defendant Raymond Rangel, Defendant Bonnie-Dee Rangel, Defendant Kelsey Rangel, and Defendant Amanda Rangel (collectively, "Defendants")'s Demurrer. The Demurrer relates to Plaintiff Sheila Corey ("Plaintiff")'s First Amended Complaint.

Defendants demurrer to Plaintiff's complaint pursuant to Code of Civil Procedure section 430.10 subdivisions (b), (e), and (f) on several grounds.

For the following reasons, the Demurrer is **sustained**, with leave to amend.

Legal Standard

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("*Doe*")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe* at 551, fn. 5.) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Analysis

Uncertainty is a disfavored ground for demurring to a complaint. (See, e.g., *Khoury v. Maly's of California* (1993) 14 Cal.App.4th 612, 616; 1 Weil & Brown, Civil Procedure Before Trial (The Rutter Group 2011) § 7:84, p. 7-39.) A demurrer for uncertainty generally will be sustained only when the complaint is such that the defendant cannot even determine what it must respond to. (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 139.)

In this case, sustaining the Demurrer on the grounds of uncertainty is warranted. The First Amended Complaint is a three-page form complaint which references an unfiled declaration and does not identify any causes of action. The First Amended Complaint alleges with respect to damages "Denied